



AKEHURST'S MODERN INTRODUCTION TO INTERNATIONAL LAW

NINTH EDITION

ALEXANDER ORAKHELASHVILI



Akehurst's Modern Introduction to International Law

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Alexander Orakhelashvili (LLM Leiden, PhD Cantab), Reader at the University of Birmingham, UK, has taught and researched public international law at four British universities over the past twenty years. He is a frequent speaker at international conferences and seminars on developments in public international law, and has given invited papers at the events and conferences held in the UK, the USA, France, Italy, the Netherlands, Spain, and Japan. He has provided legal advice regarding public international law issues in litigation before English and American courts. His publications include *Peremptory Norms in International Law* (2006), *The Interpretation of Acts and Rules in Public International Law* (2008), *Collective Security* (2011), *Domesticating Kelsen: Towards the Pure Theory of English Law* (2019), and *International Law and International Politics: Foundations of Interdisciplinary Analysis* (2020), as well as three edited collections and more than eighty articles and book chapters in leading journals and edited collections.

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University of Sussex, UK*

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Alexander Orakhelashvili

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Preface

Structural and substantive clarity has always been among the virtues of Michael Akehurst's *Modern Introduction to International Law*, and has enhanced its role as a useful tool to convey methodological basics of the discipline of international law. It is a textbook written in the best tradition of legal positivism that has, from the twentieth century onwards, been the principal pattern of the international legal tradition in the UK. More than two decades had passed after the publication of Professor Malanczuk's updated 7th edition when the 8th edition of this textbook appeared in the public domain and took account of an immense quantity of international legal developments that had taken place in the intervening period. This 9th edition accounts for more international legal developments, including major international legal controversies which have taken place since the 8th edition went to print in 2018, over forty decisions of international and national courts, as well as a number of treaties and State practice developments from 2018 onwards. By and large it endorses the approaches taken in the 8th edition.

Akehurst is not the longest textbook of international law, and this should be found helpful in the study process. At the same time, *Akehurst* is one of the most comprehensive international law textbooks; indeed one of the very few textbooks that includes discrete chapters on international economic relations and on air and space law. It is a generalist textbook, but also it highlights how generalist legal categories work in specific areas of international law, and how the overall coherence of the international legal system is ultimately ensured.

I have preserved the original pattern of referencing from previous editions. Those references added to 8th and 9th editions that do not contain a precise source indication are to materials freely and easily available online, and these are further featured on *Akehurst's* companion website, which also includes future updates and further discussion questions on the relevant material.

Alexander Orakhelashvili
Birmingham, 2021

List of abbreviations

ACHR	American Convention on Human Rights
ACP	African, Caribbean and Pacific
ASR	Articles of State Responsibility (also “ILC Articles”)
ATS	Alien Tort Statute (US)
BIT	bilateral investment treaties
CEDAW	Convention on the Elimination of All Forms of Discrimination Against Women
CERD	Convention Against Racial Discrimination
CIS	Commonwealth of Independent States
CITES	Convention on Trade in Endangered Species
CJEU	Court of Justice of the European Union
CoE	Council of Europe
DARIO	Draft articles on the responsibility of international organisations
DRC	Democratic Republic of the Congo
DRVN	Democratic Republic of Viet Nam
DSB	Dispute Settlement Body
DSU	Dispute Settlement Understanding
ECHR	European Convention on Human Rights
ECJ	European Court of Justice
ECOSOC	Economic and Social Council
ECOWAS	Economic Community of West African States
ECSR	European Committee of Social Rights
ECT	Energy Charter Treaty
ECtHR	European Court of Human Rights
EEA	European Economic Area
EECC	Ethiopia-Eritrea Claims Commission
EEZ	exclusive economic zone
EFTA	European Free Trade Association
EIA	environmental impact assessment
ESA	European Space Agency
EU	European Union
FAO	Food and Agricultural Organization
FCN	Friend, Commerce, and Navigation
FET	fair and equitable treatment
FRG	Federal Republic of Germany
FRY	Federal Republic of Yugoslavia

FSIA	Foreign Sovereign Immunities Act (US)
FYROM	Former Yugoslav Republic of Macedonia
GA	General Assembly
GATS	General Agreement on Trade in Services
GATT	General Agreement on Tariffs and Trade
GDR	German Democratic Republic
IBRD	International Bank for Reconstruction and Development
ICAO	International Civil Aviation Organization
ICC	International Criminal Court
ICCPR	International Covenant on Civil and Political Rights
ICESCR	International Covenant on Economic, Social and Cultural Rights
ICJ	International Court of Justice
ICRC	International Committee of the Red Cross
ICSID	International Centre for Settlement of Investment Disputes
ICTR	International Criminal Tribunal for Rwanda
ICTY	International Criminal Tribunal for the Former Yugoslavia
IDA	International Development Association
IFC	International Finance Corporation
IFI	international financial institutions
IHL	international humanitarian law
ILC	International Law Commission
ILO	International Labour Organization
IMF	International Monetary Fund
IMO	International Maritime Organisation
IMT	International Military Tribunal
ITLOS	International Tribunal for the Law of the Sea
ITU	International Telecommunication Union
LAS	League of Arab States
MFN	most-favoured nation
MICT	Mechanism for Criminal Tribunals
MIGA	Multilateral Investment Guarantee Agency
MoU	Memorandums of Understanding
NAFO	North Atlantic Fisheries Organisation
NAFTA	North American Free Trade Agreement
NGO	non-governmental organisation
OAS	Organization of American States
OAU	Organization of African Unity
OIC	Organization of Islamic Cooperation
OPEC	Organization of Petroleum Exporting Countries
PCA	Permanent Court of Arbitration
PCIJ	Permanent Court of International Justice
PRC	People's Republic of China
SCSL	Special Court for Sierra Leone
SFRY	Socialist Federal Republic of Yugoslavia

SPS	Sanitary and Phytosanitary Services
STL	Special Tribunal for Lebanon
TRIMs	Trade-Related Investment Measures
TRIPS	Trade-Related Aspects of Intellectual Property
TRNC	Turkish Republic of Northern Cyprus
UAR	United Arab Republic
UDHR	Universal Declaration of Human Rights
UDI	Unilateral Declaration of Independence
UNCC	United Nations Compensation Commission
UNCLOS	United Nations Convention on the Law of the Sea
UNCOPUOS	United Nations Committee on the Peaceful Uses of Outer Space
UNEF	United Nations Emergency Force
UNESCO	UN Educational, Scientific and Cultural Organization
UNTS	United Nations Treaty Series
UK	United Kingdom
US	United States
USMCA	US–Mexico–Canada Agreement
USSR	Union of Soviet Socialist Republics
VCCR	Vienna Convention on Consular Relations (1963)
VCDR	Vienna Convention on Diplomatic Relations (1961)
VCLT	Vienna Convention on the Law of Treaties (1969)
WHO	World Health Organization
WTO	World Trade Organization

Glossary

à titre de souverain – in a sovereign capacity
aut dedere aut judicare – to prosecute or to extradite
civitates superiores non recognoscentes – entities not recognising a superior
contra legem – against the law
debellatio – control of the entire territory of an enemy following a war
de facto – in fact
de jure – in law
domaine réservé – internal affairs of a State
effectivités – State activities manifesting exercise of public authority in a territory
erga omnes – towards all
ex aequo et bono – a decision in which equity overrides all other rules
fait accompli – accomplished fact
hostis humani generis – enemies of all mankind
in dubio pro reo – the accused benefits from the doubt
in personam – operating in relation to a person
in rem – operating in relation to a thing
in situ – on site, in a particular location
inter partes – between the parties
inter se – among each other
jure gestionis – action other than in the exercise of sovereign authority
jure imperii – action in the exercise of sovereign authority
jus ad bellum – law as to resort to war (use of force)
jus cogens (or *ius cogens*) – compelling law
jus dispositivum (or *ius dispositivum*) – disposable (or dispensable, modifiable) law
jus gentium – law of nations
jus in bello – law applicable during war
jus inter gentes – law among nations (States)
jus naturae/jus naturale – natural law
lex ferenda – law as it is desired to be, or law of the future
lex lata – actual law
lex posterior – later law
lex specialis – special law (as opposed to *lex generalis*)
lex superior – law with a higher rank (as opposed to *lex inferior*)
male captus male detentus – wrongly captured, wrongly imprisoned
ne bis in idem – not twice for the same
nemo dat quod non habet – no one can give what he does not have

non liquet – not clear

opinio juris – opinion as to law

pacta sunt servanda – treaties must be fulfilled

pacta tertiis nec nocent nec procunt – treaties create no rights or obligations for a third party

par in parem non habet imperium – an equal has no authority over an equal

prima facie – on first impression

ratione loci – in terms of place (or location)

ratione materiae – in terms of subject matter

ratione personae – in terms of persons

ratione temporis – in terms of time (or duration)

rebus sic stantibus – provided that things remain as they are

res inter alios acta – a thing done or operating in relations between specific persons and not affecting other persons

res judicata – adjudicated matter

stare decisis – according to things (already) decided

sic utere tuo ut alienum non laedas – use what you use the way that others are not harmed

sine delicto – not involving a delict

sui generis – of its own kind, not part of pre-established categories

terra firma – dry land (above the water surface)

terra nullius – no one's land

travaux préparatoires – preparatory work

tu quoque – you too

ultra vires – beyond legal authority

uti possidetis juris – as possessed according to law

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- Vienna Convention on Diplomatic Relations (VCDR)
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- 1965 Convention on the Settlement of Investment Disputes between States and Nationals
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- 1968 Agreement on the Rescue of Astronauts, the Return of Astronauts and the Return of Objects Launched into Outer Space (Rescue Agreement)
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Convention on the Rights of the Child
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- 1990 Convention on Oil Pollution, Preparedness, Response and Co-operation
Protocol to the American Convention on Human Rights to Abolish the Death Penalty
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1

Introduction

Law is ordinarily associated with command and enforcement, and thus with a government that can command and enforce. How can the international legal system not sustained by a government exist and operate? As there is no world government over and above independent States, international law cannot be created or enforced the same way as national law. Yet, in the absence of a system of international law, States are unable reliably to cooperate with each other in any area, whether by trading; or establishing alliances; or extraditing crime suspects; or managing climate change, fisheries, or natural resources. For, an independent State owes nothing to anyone save to the extent of obligations that the system of international law regards as binding. This chapter explains the following:

- The doctrinal explanation of international law over many centuries
- How international law as positive, or man-made, law binds States even if it is not enacted by a government
- How State independence coexists with legal obligation
- The main organising elements of international law
- How international law is enforced in the absence of a government
- How international law differs from ethics, politics, or morality

1.1 Defining international law

International law (or law of nations) is the body of rules binding on States in their relations with each other, and determining their mutual rights and obligations. Although the system of international law also includes non-State entities such as international organisations, this system exists because independent sovereign States exist. The law governing relations between States is international law properly so called (public international law), while elements of a national legal system dealing with private law relations involving a foreign element (e.g. persons resident, marriages contracted, or

property situated abroad) are denoted as “conflicts of laws” (private international law).¹

The term “international law” was first used by English philosopher Jeremy Bentham in 1780 in his *Introduction to the Principles of Morals and Legislation*. By the mid-nineteenth century, in the English and Romanic languages, “international law” had replaced the older terminology “law of nations” or “*droit de gens*”, which can be traced back to the Roman concept of *jus gentium* and the writings of Cicero.² In the German, Dutch, and Scandinavian languages, the older terminology corresponding to “law of nations” is still in use (“*Völkerrecht*”, “*Volkenrecht*”, etc.).

This evolving terminology reflects the evolution of the understanding of the systemic framework within which international law operates, especially in terms of whether international law is natural law or positive law. The natural law school identifies law and justice with natural reason, ethics, morality, or religion; it queries whether a rule enacted or outcome proposed is good, useful, fair, just, necessary, or desirable; in short it invites us to appreciate whether it makes sense. On the account of positivism, a rule is binding because it is enacted by the authority that is constitutionally empowered to enact binding rules, regardless of whether those rules are acceptable from a particular point of view. If international law is positive law, then it has to rest on a basis other than the lawmaking authority of a State because there is no world government, and no State has any authority to lay down law for another State. This leaves no option except agreement between States. Therefore, the basic distinction is that natural law focuses on ideas and values and is a subset of ethics; positivism focuses on law in real-life relations between States.

Natural law encourages the perception that national and international law are informed by similar ideas and concepts. To illustrate, *jus gentium* (law of nations) in ancient Roman law was part of Roman domestic law, yet applied to legal relations involving Romans with foreign citizens, as well as relations of Rome with other States, in terms of war, peace, and diplomacy. From Roman times onwards, the idea and legitimacy reinforcing *jus gentium* rested mainly on the ideas of natural law and justice.

The first important naturalist writers were the Spaniards Vitoria (1486–1546)³ and Suarez (1548–1617); Gentili (1552–1608), an Italian Protestant who fled to England;⁴ and the Englishman Zouche (1590–1661). All these writers agreed that the basic principles of international law were derived not from any deliberate human choice or decision, but from principles of justice which had a universal and eternal validity and which could be discovered by pure reason.

Francisco Vitoria took the conception of *jus gentium* from Roman jurisprudence and applied it to the relations of nations. He taught that States were independent of each other, yet the rules allegedly established by nature governed relations between

¹ See further Ch. 4.

² See, for example, Cicero, *De officiis*, lib. III, 17, 69.

³ A. Truyol Serra et al. (eds), *Actualité de la pensée juridique de Francisco de Vitoria*, 1988.

⁴ See T. Meron, Common Rights of Mankind in Gentili, Grotius and Suarez, *AJIL* 85 (1991), 110–117.

them.⁵ Vitoria's early attempt to portray *jus naturae* as the universal law of humanity was meant to explain the position of American Indians within the sphere of international law.⁶ With the Spanish expansion on the American continent from the fifteenth century onwards, the law applicable to relations between the Spanish Empire and American nations and tribes had to be identified in order to legitimise movement of Spaniards across national borders, regardless of the territorial supremacy of the native States. In addition, Vitoria, as well as Suarez, used the term *jus inter gentes* (law between States), Suarez especially emphasising the centrality of States in creating and applying international law in their mutual relations and hence showing greater inclination to embrace positivism.

Dutch legal scholar Hugo Grotius (1583–1645) is often regarded as the founder of the modern doctrine of international law.⁷ Natural law was originally regarded as of divine origin, but Grotius considered that the existence of natural law was the automatic consequence of the fact that men lived together in a society and were capable of understanding that certain rules were necessary for the preservation of society. According to this line of argument, the prohibition of murder, for instance, was a rule of natural law, independently of any legislation forbidding murder, because every intelligent man would realise that such a rule was just and necessary for the preservation of human society.

Having some religious overtones and being incapable of verification, the natural law theory is suspect in a scientific and secular age. The essence of the theory was to identify law with justice, and, although lawyers and judges often appeal to justice in order to fill gaps or to resolve uncertainties in the law, the theory of natural law could also logically lead to a much more radical conclusion, namely that an unjust rule is not law at all and can be disregarded by the judge. But this is a conclusion which no modern legal system would accept. Many could find it unfair or unjust that in English law homelessness is no defence to trespass, or extreme poverty no defence to theft, but what the law requires and whether the law is just is not the same thing.

However, in the sixteenth and seventeenth centuries, the natural law theory performed a very useful doctrinal function by encouraging respect for justice at a time when the division of Europe between Catholics and Protestants might otherwise have led to complete anarchy. The idea of natural law and justice was, at that time, also

⁵ C. Phillipson, Franciscus a Victoria (1480–1546). *International Law and War*, 15 *Journal of the Society of Comparative Legislation* (1917), 175 at 180–181.

⁶ M.v. Gelderen, The Challenge of Colonialism: Grotius and Vitoria on Natural Law and International Relations, *Grotiana* 14/5 (1993/4), 3–37.

⁷ See T.M.C. Asser Instituut (ed.), *International Law and the Grotian Heritage*, 1983; R. Haggenmacher, *Grotius et la doctrine de la guerre juste*, 1983; A. Dufour, P. Haggenmacher, and J. Toman (eds), *Grotius et l'ordre juridique international*, 1985; H. Bull, B. Kingsbury, and A. Roberts (eds), *Hugo Grotius and International Relations*, 1990; C.G. Roelofsen, Grotius and the "Grotian Heritage" in *International Law and International Relations, The Quartercentenary and Its Aftermath (ca. 1980–1990)*, *Grotiana* 11 (1990), 6–28; O. Yasuaki (ed.), *A Normative Approach to War. Peace, War, and Justice in Hugo Grotius*, 1993; P. Borschenberg, *Hugo Grotius "Commentarius in theses XI": An Early Treatise on Sovereignty, the Just War, and the Legitimacy of the Dutch Revolt*, 1994.

the most coherent basis on which to censor the cruelty with which wars in Europe were then conducted. It is hard to think of any other foundations on which a study of international law could have been built at that time, because the evidence of law created through agreements between States was not easy to identify with regard to those matters. The vagueness of the natural law theory, which is nowadays seen as a defect, was less apparent in the time of Grotius, who illustrated his arguments with biblical quotations, references to Greek and Roman history, and – above all – analogies drawn from Roman private law, which at that time was admired as a fairly accurate reflection of natural law.

From the seventeenth century onwards, with the consolidation in Europe of sovereign nation States as central units of governance and public authority, the argument was more consistently advanced that law was largely positive law, that is, man-made. Consequently, law and justice were not the same thing, and laws might vary from time to time and from place to place, according to the will of the national legislator. Applied to international law, positivism regarded the actual behaviour of States in their mutual relations as the basis of international law: law derived from practices and agreements occurring in real life, not from ideas and values. The first great positivist writer on international law was another Dutchman, Cornelius van Bynkershoek (1673–1743). A major contribution towards combining naturalist with positivist reasoning was made by the Swiss legal scholar Emerich von Vattel (1714–1767).⁸ He emphasised the inherent rights which States derived from natural law, but suggested that natural law alone was insufficient to enable States to conduct their mutual relations, and instead they had to rely on agreements as sources of positive law. For, States were independent of each other and no law except one they consented to could bind them. Vattel exercised a strong influence on many writers and States during the eighteenth, nineteenth, and early twentieth centuries because his State-centric presentation of international law appealed to statesmen.

The positivist approach requires not assessing whether State conduct is reasonable, necessary, useful, or acceptable from a particular socio-ethical point of view, but whether it is mandated under particular rules of international law. The positivist approach constitutes the language of modern international law. As Lassa Oppenheim, champion of international legal positivism in the United Kingdom, taught more than a century ago, “[t]he first and chief task is the exposition of existing recognised rules of international law – whether we approve or condemn it, whether we want to retain, abolish or replace it”.⁹ Thus, international law is “not so much justice as such, but order, stability, certainty, and the elimination of that subjective element that cannot fail to enter into any attempt to apply justice directly, and which often vitiates it”.¹⁰

⁸ N.G. Onuf, *Civitas Maxima: Wolff, Vattel and the Fate of Republicanism*, *AJIL* 88 (1994), 280–303.

⁹ L. Oppenheim, *The Science of International Law: Its Task and Method*, *AJIL* 2 (1908), 313 at 314.

¹⁰ G. Fitzmaurice, *The Foundations of the Authority of International Law and the Problem of Enforcement*, 19 *Modern Law Review* (1956), 1 at 12–13.

1.2 International law as law

As there is no government or legislator over and above States to impose legal requirements on them, where does the binding force of international law come from? The existence of territorially based sovereign and independent States, subjected to no superior authority, and the restriction of each State's public authority to its own territory, leaves no possibility to legally regulate relations between them except through the rules of law agreed and consented to by those very same independent States. International law is law created by States through their consent and agreement, as opposed to domestic law, which is imposed by the State authorities on individuals or corporations without their consent. There is no government over and above States. States are independent, autonomous, sovereign, and legally unsubordinated either to each other or to any other authority that has not been created through their consent.

Owing to all the preceding, the long tradition of questioning and denying the existence of international law should not generate any surprise. There is an old controversy going back to the writings of English philosopher Thomas Hobbes (1588–1679) and German legal philosopher Samuel von Pufendorf (1632–1694), reinforced in the nineteenth century by John Austin's legal theory, on whether positive international law is law properly so called. The premise that international law was not backed up by sanctions and enforcement comparable to those found in municipal law often led to obscuring the distinction between the questions of whether international law is law and whether it is effectively enforced.¹¹

A central thesis to Hobbes' legal teaching is the transition of a particular society from the state of nature (chaos and lawlessness) to the civil state (law and order). At some supposed and unidentified stage of history, such transition occurs, accompanied by the establishment of sovereign authority to which people surrender their freedom. From this point onwards, people have only such rights as are granted to them under the law made by that sovereign. The sovereign is free of all legal restrictions. Following from that premise, Hobbes suggests that on the international plane, in relations between independent States, no such transition from the state of nature to the civil state has ever taken place, and there is no sovereign over and above States. Hence, according to Hobbes, there is no one who can create or enforce international law.

Austin's theory views domestic law as a system of commands issued by the sovereign and addressed to people, and suggests that there is no sovereign entity over and above States to issue commands to them and thus to create law that binds them. International law, on Austin's account, is "positive morality".

In the twentieth century, another objection to the legal nature of international law was voiced by English legal philosopher H.L.A. Hart. According to Hart, international law is a primitive legal system which has primary rules (rules about conduct) but no

¹¹ On the problem of the enforcement of international obligations, see the Colloquium in Commemoration of the 600th Anniversary of the University of Heidelberg, 22 and 23 September 1986, *ZaöRV* 47 (1987), 1 *et seq.*; P. van Dijk, Normative Force and Effectiveness of International Norms, *GYIL* 30 (1987), 9; J. Delbrück (ed.), *The Future of International Law Enforcement. New Scenarios – New Law?*, 1993.

secondary rules, i.e. rules about how rules are made and interpreted, or about the consequences arising when primary rules are breached.¹² However, international law does include a sufficient number of secondary rules, such as ones regarding conclusion and interpretation of international treaties,¹³ or responsibility of States for internationally wrongful acts, including retaliation.¹⁴

The relevance of international law has also been addressed in foreign policy scholarship, namely by the school of political realism represented by leading American political scientist Hans Morgenthau¹⁵ and former US Secretary of State Henry Kissinger.¹⁶ The realist thesis is that international law has no primary or decisive influence on the conduct and policies of States, which are primarily guided by their own national interest and influenced by considerations of power more than by anything else. The realist thesis sits well with the fact that there is no government over and above States to instruct them to behave one way or another. However, international legal reasoning does not require questioning State autonomy or the significance of military, economic, political, and ideological elements of power. It is perfectly possible that a historian or social scientist taking a look at a particular international controversy concludes that the conduct of States in that situation was not primarily driven by legal considerations, and that States even breach their legal obligations when they find this to suit their interests. By contrast, legal reasoning aims to expose the legal qualification that the legal system bestows upon the particular conduct of States, and to identify the legal consequences of that conduct.

Describing international law as a “primitive legal system” tempts its comparison to the unsophisticated institutions, principles, and rules of pre-modern or stateless societies. But this is, at most, a mere description a sociologist would be content with, as opposed to explaining the actual normative status and workings of international law.

National law is not impeccably enforced either. To illustrate, in the UK the exercise of prosecutorial discretion leaves the bulk of criminal offences unpunished. In several towns of the United States, there are some crime-dominated areas where domestic law and law enforcers do not go. In the UK, it is not unheard of for women who are harassed in their employment, in relation to their pregnancy and maternity leave entitlements, opting to quit instead of having recourse to the legal system, because court cases take too long, fees charged for litigation are high, and the compensation in case of success is not high enough to make litigation worthwhile. Thus, even in national legal systems pragmatic calculation may induce people not to insist on their rights under the law of the land, and the transition from natural to civil state, whenever and however that took place, does not avail all people in the same way.

¹² H.L.A. Hart, *Concept of Law* (1961), Ch. 8.

¹³ See further Ch. 12.

¹⁴ See further Ch. 13.

¹⁵ H.J. Morgenthau, *Politics Among Nations. The Struggle for Power and Peace*, 1948. See also E.H. Carr, *The Twenty Years Crisis 1919–1939. An Introduction to the Study of International Relations*, 1940.

¹⁶ H.A. Kissinger, *Diplomacy*, 1994; see further Ch. 2.

If national law is not impeccably enforced despite having a powerful enforcement machinery at its disposal, and still no one questions its legal character on that basis, there is no ground for questioning the legal character of international law either. If lack of enforcement does not deprive domestic law of its binding force, reducing it to mere “positive morality”, neither does it do that to international law.

In effect, what distinguishes the rules and principles of international law from mere morality is that they are accepted in practice as legally binding by States in their mutual relations. While international law is weaker than municipal law from the viewpoint of enforcement, it still provides the relevant terms of reference for the conduct of States in their international relations, based on the fact that, in spite of all differences as to their size, power, or policies (the community of about 200 States in existence today is rather heterogeneous in terms of military, political and economic power, territorial size and population, political structure, and cultural and ideological orientation), they have to exist within a single international community without any form of international government.

The proper relevance of the regulatory aspect of international law cannot be understood before one understands that the international legal system that functions in the community of States does not sustain any uniform perception of public interest and social policy in the way of national societies. States are diverse ideologically, socially, politically and ethically. In such circumstances, international law cannot be law unless its rules alone determine the legality or illegality of State conduct to which they apply, regardless of how the same conduct could be evaluated on social, ethical and political terms. The binding force of any legally established international rules is not the same as their utility or desirability from a particular ethical or socio-political point of view. If international law were unable to provide, on its own, legal answers to contentious questions, then it would not have the status of law.

While it is impossible to eliminate the aforementioned mismatch between legal and non-legal analysis, it would be even more difficult to secure any general agreement between States to adapt international law to the socio-political or ethical vision held by any particular group of States. Human rights norms do not lose any of their content or binding force because some Asian States and societies are sceptical about them; neither do the rules on non-use of force or non-intervention become any less binding because some Western States are keen to uphold the doctrine of “humanitarian intervention”, which purports to legitimise the invasion of State territory to save individuals from State violence (as with the use of force by NATO States against Yugoslavia in 1999).¹⁷ National opinion in some countries may sympathise with, and the position of some States may also claim the legality of, extra-judicial assassination of terror suspects across the boundaries of States. Whether such a claim is accommodated in international law depends, however, on whether there is a general agreement between States to that effect. Advancing any socio-political or ethical rationale for determining the legality or legitimacy of State conduct is, in its very essence, an

¹⁷ See further Ch. 20.

attempt to substitute policy and ideological preferences held in one particular part of the world for the law enshrined in the agreed rules of international law.

The fact that there is socio-political opposition to the strict application of law, or even socio-political sympathy towards the law breaker, does not make legal rules inapplicable to the underlying conduct, nor alter the qualification of illegality that those rules may bestow upon certain conduct. Socio-political disapproval does not alone make any action illegal, any more than socio-political approval and sympathy alone could make it lawful.

Therefore, the best way to understand the content of international law is to follow through the international legal system's own requirements, and to avoid falling into the trap of some "broader", "external" or "holistic" perspectives that view the normative force of law in the context of ethical or socio-political factors. No international tribunal has ever been persuaded to accept that any rule of international law is less binding because it is not socio-politically desirable, or that legal rules apply to State conduct only when this is politically suitable, or that any dispute is political, not legal, and hence cannot be settled through adjudication.¹⁸ For, any admission that a dispute is political and not legal would be tantamount to enabling a State to unilaterally exempt itself from the binding force of applicable rules of positive international law. Therefore, any suggestion of fine-tuning away the difference between law, ethics, and politics is in essence a suggestion to forget about the binding force of law that derives solely from the lawmaking authority.

There is no difficulty in accepting that, as created through the sources of positive law, international law is not the only normative framework in the international system. Informal standards of morality and courtesy (comity) could also influence the behaviour of States. However, of all those possible normative systems, international law is the only one that has binding force.

1.3 Characteristics of international law

The legal and binding character of international law is also attested by positive evidence. States recognise the relevance and binding force of international law in their mutual dealings on a daily basis. Disputes between States are usually accompanied by – in a given case naturally often conflicting – references to international law.

Foreign ministries employ a regular staff of legal advisers.¹⁹ Modern national constitutions frequently contain references to international law.²⁰ Many individuals have been tried and sentenced by courts that apply international law.²¹ All of this

¹⁸ For detailed analysis of judicial approaches on this point, see Orakhelashvili, *Interpretation* (OUP 2008), Ch. 2.

¹⁹ On the role of legal advisers and the impact of international law on foreign policy decision-making, see the Symposium in *EJIL* 2 (1991), 132 *et seq.* (with contributions by S.M. Schwebel, G. Guillaume, M. Krafft, and A.D. Watts); A. Cassese, The Role of Legal Advisers in Ensuring that Foreign Policy Conforms to International Legal Standards, *Mich. JIL* 14 (1992), 139.

²⁰ See Ch. 4.

²¹ Ch. 19.

corresponds to the empirical fact that most States are careful to observe most obligations of international law most of the time,²² even in the absence of a compulsory dispute settlement procedure and centralised enforcement agency. Spectacular cases of violation of international law such as aggressive war or genocidal massacre, which attract the attention of the media more than regular conduct, are exceptional in the overall context, and should not be confused with the ordinary course of business between States.

In terms of how lawmaking, sanctions, or compliance are arranged, the international legal system does not follow the historical models of centralised systems of national law operated by State governments. Instead, the system of international law is based on principles of reciprocity and consent (or consensus) rather than on command or obedience.

Domestic law is addressed to a large number of governmental bodies, private individuals and groups of individuals. International law is primarily concerned with the legal regulation of relations between States, which are organised as territorial entities, are limited in number, and consider themselves, in spite of the obvious factual differences, as sovereign and equal on legal terms. Equality in the eyes of law means having the same range of rights and obligations. There is no single rule or authority that legally endorses inequality between States, or legally privileges powerful States unless, by its own agreement, one State agrees to have fewer rights than another²³ or to be legally subordinated to another,²⁴ even though politically submissive adaptation of one State's policies to the interests and policies and interests to that of another State through some satellite or special relationships is not uncommon.

Thus, international law is a decentralised legal system, lacking any supreme authority or centralisation of the three basic functions of lawmaking, law determination, and law enforcement. The three functions, within the State typically entrusted to State organs – lawmaking (legislature), law determination (courts and tribunals), and law enforcement (administration, police, army) – are all arranged horizontally on an international plane.

As there is no government over and above States, the consent of and agreement between sovereign States is the tool through which lawmaking authority is exercised within the international legal system and rules of international law are created. The United Nations General Assembly and Security Council are not world legislatures. In terms of enforcement, the Security Council can impose sanctions on a State that has committed serious breaches of international law, but can do so only in limited circumstances permitted by the terms of the United Nations Charter.²⁵ In terms of judicial power, the International Court of Justice (ICJ) in The Hague and

²² See L. Henkin, *How Nations Behave*, 2nd edn, 1979.

²³ As with the voting arrangements in the UN Security Council (on which see Ch. 22); international financial institutions (Ch. 18).

²⁴ As with protectorate arrangements, see Ch. 5.

²⁵ Ch. 22.

other international courts can operate only on the basis of the consent of States to their jurisdiction.²⁶

In view of all the preceding, the organising elements and principles of international law can be singled out. These are consent and reciprocity. The element of consent is pre-eminent in various ways. When a State needs cooperation from another State, it has to obtain the latter's consent. In the absence of consensually assumed legal obligations, no State has to provide legal cooperation to another State, trade with it, extradite any suspected criminal to it, recognise the force of its courts' decisions, or allow its troops to be stationed on or enabled to transit through its own territory; and no alliances or international institutions could be established. Once obligations are assumed by consent, they are ordinarily assumed in return for something else, and they operate in a reciprocal manner for all States bound by those obligations.

Reciprocity also operates on the plane of compliance and enforcement. When a State breaches international law it may encounter a reciprocal breach from other States (by reprisal). This factor serves as an important deterrent and is the chief reason for the observance by States of international law. The role of self-help by States in cases of a violation of their rights is predominant in international law, as compared with the restricted admissibility of self-help for individuals in national legal systems. In modern legal systems, an individual may defend himself against assault, retake property which has been stolen from him, evict trespassers from his land, and terminate a contract if the other party has broken a major term of that contract. If one State commits an illegal act against another State, and refuses to make reparation or to appear before an international tribunal, the sanction ordinarily available to the injured State is self-help. Self-help measures should not involve the use of force, unless the requirements for the exercise of the inherent right to self-defence are met.²⁷ The forms of self-help are countermeasures (reprisals) and retorsions. *Retorsion* is a lawful act which is designed to injure the wrongdoing State – for example, cutting off economic aid (this is lawful because there is no legal obligation to provide economic aid, apart from under special treaty provisions). *Reprisals* are acts which would normally be illegal but which are rendered legal by a prior illegal act committed by the other State. For instance, if State A expropriates property belonging to State B's citizens without compensation, State B can retaliate by doing the same to the property of State A's citizens. Reprisals must be proportionate to the original wrong; for instance, State B could not expropriate property worth several times the value of the property which its citizens had lost.

1.4 The theory of sovereignty and obligation

The theory of sovereignty is not as old as the sovereign State itself; it began as an attempt to analyse the internal structure of a State. Political philosophers taught that there must be, within each State, some entity which possessed supreme legislative

²⁶ Ch. 23.

²⁷ Ch. 13.

power and/or supreme political power (typically a monarch or parliament). The theory dates back to the sixteenth century. Political scientists usually refer to the writings of Machiavelli (1469–1527), Jean Bodin (1530–96), Thomas Hobbes, and John Austin (1790–1859).²⁸ However, it is more accurate to view sovereignty as an attribute of a State as a whole, rather than one of the domestic constitutional organs of a State.

When international lawyers say that a State is sovereign, all they really mean is that it is independent, that is, it is not a dependency of some other State. One key implication of State independence and autonomy is that no rule of international law can bind it without its consent; it does not mean that a State is in any way above the law. A key pronouncement on this was made in 1927 by the Permanent Court of International Justice (PCIJ) in the *Lotus* case:

International law governs relations between independent States. The rules of law binding upon States therefor emanate from their own free will as expressed in conventions or by usages generally accepted as expressing principles of law and established in order to regulate the relations between these co-existing independent communities or with a view to the achievement of common aims. Restrictions upon the independence of States cannot therefore be presumed.²⁹

The second aspect of sovereignty relates to the actual exercise by the State of its independence and autonomy. In 1923, in the *Wimbledon* case, the Permanent Court said:

The Court declines to see, in the conclusion of any treaty by which a state undertakes to perform or refrain from performing a particular act, an abandonment of its sovereignty. . . . [T]he right of entering into international engagements is an attribute of State sovereignty.³⁰

In other words, the use of sovereignty leads to the assumption of legal obligations by States through the expression of their consent. Those obligations are binding precisely because they rest on the sovereign consent of States and even if, upon interpretation, they turn out to be more far-reaching than initially expected.

²⁸ See G.H. Sabine and T.L. Thorson, *A History of Political Theory*, 4th edn, 1973, Part III: The Theory of the National State.

²⁹ *Lotus*, PCIJ series A, no. 7; the 1933 Montevideo Convention on Rights and Duties of States also confirms that the exercise of State rights “has no other limitation than the exercise of the rights of other states according to international law” (Article 3). The UK government has further relied on *Lotus* before the ICJ in the *Nuclear Weapons* case. *Statement of the UK Government* (June 1995), p. 21. See Chs 3 and 10 on the background and further aspects of *Lotus*.

³⁰ *Wimbledon* case, PCIJ series A, no. 1, 25. In this case, Germany had refused the British steamship *Wimbledon*, chartered by a French company, access to the Kiel Canal on the grounds that the vessel had on board a cargo of munitions and artillery stores consigned to the Polish naval base at Danzig. The refusal was based upon German Neutrality Orders issued in 1920 in connection with the war between Russia and Poland. The Court held that Germany had acted in violation of Art. 380 of the Versailles Peace Treaty.

Of course, there have been treaties containing such far-reaching obligations that they deprive a State of much of its freedom of action – for instance, a treaty whereby one State becomes a protectorate of another State.³¹ To a layman, the idea of a State joining a “supranational” organisation like the European Union could be seen as loss of independence. Legally speaking, however, it is merely a realisation of sovereignty and the giving of sovereign consent. Just as in national law the legislative power of a parliament involves redefining and redeveloping mutual relations between individuals (for instance in contract, property, criminal, or tort law) as well as their relations with State authorities (for instance in public law), so does State consent and agreement account for multiple arrangements that on their face appear to involve vertical subordination rather than horizontal coordination. States can, through treaty, transfer lawmaking authority to international institutions. While EU member States have to obey legislation enacted by the EU, the latter’s power to enact it derives from the treaty through which member States have delegated that power to it and which authorises EU institutions (Council or Commission) to enact relevant laws.

The very possibility of such far-reaching arrangements regulating multiple aspects of social life in the absence of a government over and above States requires us to identify the ultimate basis of that system’s legitimacy. In every legal system there has to be one single basis from which the binding force of all legal rules and instruments can be derived. Otherwise, nearly every single binding rule would be affected by obstruction from another rule with a different source of legitimacy, and conflicts between rules derived from various sources would be insoluble.³²

Although consent is the tool for assuming international obligations, the binding force of rules created through consent outlives the initial giving of that consent. Rules and instruments created through State consent continue to have binding force even if the State which gave that consent is not subsequently happy with the rules or obligations thus created. It cannot unilaterally withdraw the consent it originally gave.³³ Therefore, even if rules of international law are based on consent, the rule that obligations assumed by consent are binding is not based on consent; if it were, then rules created through consent would not be binding rules and no viable cooperation between States would subsist. According to Brierly, the rule that agreed rules are binding and have to be complied with (*pacta sunt servanda*) operates whether States consent to it or not.³⁴ It could not be otherwise because, as Kelsen explains, the fundamental rule of international law is that States have no obligations apart from those they have consented to, and no obligations could be created in any other manner.³⁵ These two propositions form two sides of the same coin.

³¹ See Ch. 5, Ch. 7.

³² On normative conflicts see Ch. 3.

³³ See Ch. 12.

³⁴ Brierly, *The Basis of Obligation in International Law*, 1958.

³⁵ Kelsen, *Das Problem der Souveränität*, 1920.

1.5 Newer developments in theory

The old schools of natural law and positivism³⁶ have shaped the debate on international law for centuries, and positivism today forms the basis of mainstream thinking in international law. The discourse of international law has, however, expanded over the past three decades, and theories have been developed to view international law from an angle that is not positivist. What unites those alternative theories is their opposition to consensual positivism and partial, if covert, attempts to reintroduce natural law premises into legal reasoning. Beyond this common feature, each theory states its own analytical premises, and thus attempts to handle particular international legal controversies at issue.

From the 1950s onwards, the “policy-oriented” approach of the New Haven School was founded by the Yale University law professor Myres S. McDougal.³⁷ The aim of this theory, at the height of the Cold War, was to rationalise the role of the United States as the leader of the free world and suggest ways of legitimising its conduct and policies involving wars, interventions, or subversive operations when positive international law was not flexible enough to provide such legitimisation. Therefore, policy-oriented theory regards international law not as a body of legal rules but as a process of authoritative policy decision-making led by the hegemon and their allies and reflecting their political and ideological priorities. Consequently, it has been criticised by positivist writers (especially in Europe) as abandoning the very concept of law and legal rules. The principal analytical problem with this theory is that unless law is viewed as a body of legal rules, its binding force cannot be explained.

A more recent reincarnation of the policy-oriented approach is the liberal theory proposed by Anne-Marie Slaughter in the 1990s to reflect the demise of the Socialist bloc and the rising power of the United States. The key thesis is that international law differentiates between the rights of liberal States and those of non-liberal States, privileging the former over the latter,³⁸ in a way that seems to reiterate the principal thesis of the New Haven School.

In the West, a school of “Critical Legal Studies”, started in the United States from the 1980s onwards, vigorously challenged traditional positivist perceptions of international law from a methodological point of view based on analytical language

³⁶ On A. Verdross, see the contributions by B. Simma, A. Truyol y Serra, B. Conforti, A. Carty, and I. Seidl-Hohenveldern in *EJIL* 6 (1995), 32–115. On D. Anzilotti, see R. Ago, P.-M. Dupuy, G. Gaja, J.M. Ruda, and A. Tanca in *EJIL* 3 (1992), 92 *et seq.* On G. Scelle, see H. Thierry, A. Cassese, L. Condorelli, R.J. Dupuy, and A. Tanca in *EJIL* 1 (1990), 193 *et seq.*

³⁷ See M.S. McDougal and W.M. Reisman, *International Law in Policy-Oriented Perspective*, in Macdonald/Johnston (eds), 1983, *op. cit.*, 103–129; M. McDougal and Associates, *Studies in World Public Order*, 1987; G.L. Dorsey, *The McDougal-Laswell Proposal to Build a World Public Order*, *AJIL* 82 (1988), 41–50; M.S. McDougal, *The Dorsey Comment: A Modest Retrogression*, *ibid.*, 51–57; H.D. Lasswell/M.S. McDougal, *Jurisprudence for a Free Society*, 2 Vols, 1992.

³⁸ A.-M. Slaughter, *International Law in a World of Liberal States*, 6 *EJIL* (1995), 503.

philosophy and a hermeneutical theory of law.³⁹ The “deconstruction” of international legal argumentation by these critical legal scholars suggests that, being vague and indeterminate, international law has no distinct existence of its own as a normative system. This is arguably owed to the lack of unified socio-political opinion or ideological consensus in the absence of a centralised authority over States. As a compensating factor, critical theory offers little more than writers’ own ethical or ideological perspectives to resolve the issues arising out of law’s perceived indeterminacy and incoherence. The outcome would then be that either there are no legal answers to the relevant questions, or there are ones dictated by a writer’s own perspective or preferred ideology, and thus different from what is required under rules agreed between States.

Other modes of inquiry propose introducing alternative criteria of legitimacy for State conduct, shadowing, or at times even displacing, the applicable international legal requirements: for example, the writings of Thomas M. Franck, which address the issues of “legitimacy” and “fairness” of the international legal system.⁴⁰ Franck’s legitimacy is, in essence, yet another leg of critical theory, suitable to the agenda of those who are keen on political and ideological critique of international law. In addition, some more, allegedly utopian, theories have entered the marketplace of ideas,⁴¹ and there is also a claim to a “feminist approach” to international law, which builds on critical legal theories and consists of diverse trends as opposed to articulating “one true story” of feminist jurisprudence. Feminist theory admits its “permanent partiality” and sees itself as a mode of analysis rather than a set of conclusions.⁴² Another interesting development to be mentioned is the attempt to bridge the gap between international law theory and international relations theory.⁴³

³⁹ See D. Kennedy, *A New Stream of International Law Scholarship*, *Wis. ILJ* 7 (1988), 6 *et seq.*; M. Koskenniemi, *From Apology to Utopia: The Structure of International Legal Argument*, 1989; Koskenniemi, *The Politics of International Law*, *EJIL* 1 (1990), 4–32; A. Carty, *Critical International Law: Recent Trends in the Theory of International Law*, *EJIL* 2 (1991), 66 *et seq.*; O. de Schutter, *Les critical legal studies au pays du droit international public*, *Droit et Soc.* 22 (1992), 585–605; G. Dencho, *Politics or Rule of Law: Deconstruction and Legitimacy in International Law*, *EJIL* 4 (1993), 1–14.

⁴⁰ See T.M. Franck, *The Power of Legitimacy Among Nations*, 1990; T.M. Franck and S.W. Hawkins, *Justice in the International System*, *Mich. JIL* 10 (1989), 127; J.E. Alvarez, *The Quest for Legitimacy: An Examination of the Power of Legitimacy Among Nations*, *NYUJILP* 24 (1991), 199–267; T.M. Franck, *Fairness in International Law and Institutions*, 1995.

⁴¹ See the inspiring writings by P. Allott, *Eunomia. New Order for a New World*, 1990; P. Allott, *Reconstituting Humanity – New International Law*, *EJIL* 3 (1992), 219–252.

⁴² See, for example, H. Charlesworth, C. Chinkin, and S. Wright, *Feminist Approaches to International Law*, *AJIL* 85 (1991), 613–614; D.G. Dallmeyer (ed.), *Reconceiving Reality: Women and International Law*, 1993.

⁴³ K.W. Abbott, *Modern International Relations Theory: A Prospectus for International Lawyers*, *Yale JIL* 14 (1989), 335–411; A.-M. Slaughter Burley, *International Law and International Relations Theory: A Dual Agenda*, *AJIL* 87 (1993), 205–239; S.V. Scott, *International Law as Ideology: Theorizing the Relationship Between International Law and International Politics*, *EJIL* 5 (1994), 313–325; A.C. Arend, R.J. Beck, and R.D.V. Lugt (eds), *International Rules. Approaches from International Law and International Relations*, 1996; V. Rittberger (ed.), *Regime Theory and International Relations*, 1993.

Owing to the end of the Cold War and collapse of the Socialist bloc in the early 1990s, the Marxist-Leninist theory of international law, at times consisting of socialist critique of international law and at times proposing its development to reflect socialist ideals with regard to cooperation between States, has lost much of its relevance, because former communist States no longer entertain enthusiasm towards it.⁴⁴ But the removal of Cold War divisions did not do away with North–South divisions. Hence, the Marxist perspective has reappeared in Third World approaches to international law, most prominently featured in the writings of B.S. Chimni.⁴⁵ This version of Marxism is more critical and less revolutionary. The extent to which Islamic perceptions of international law are developing in a separate direction is also an open and interesting question.⁴⁶ While the initial Islamic perception of international affairs has been premised on the division of the world into *dar-al-Islam*, the region of submission to the will of God, and *dar-al-Harb*, the region of war which was yet to be converted to Islam,⁴⁷ it has also been emphasised that its fundamental premises notwithstanding, Islam has also envisaged the possibility of law dictated by social conditions of the relevant time, one that permits coexistence and good neighbourliness between States and nations of various creeds along the lines envisaged in the preamble to the UN Charter. A similar possibility for the accommodation of positive international law is envisaged in religious and customary law concepts in China, Malaysia, and Indonesia. Ideologies of *jihad* or the 1848 Communist Manifesto that aim at world domination or revolution could not be reconciled with modern international law, but that has not prevented communist and Islamic States from seeking to establish legal relations with other States on the basis of equality and peaceful coexistence.⁴⁸

All in all, these alternative theories aspire to second-guessing the content of and requirements under positive international law, either out of a desire to use international law as part of an idealist agenda to improve the life of humankind, something they do not see positive international law able to deliver, or out of scepticism as to the reality of international law in the world of power politics, impliedly at least replicating the basic tenets of Hobbesian and Puffendorffian thinking that there can be no proper system of

⁴⁴ J.W.E. Butler (ed.), *International Law and the International System*, 1987; T. Schweisfurth, *Das Völkerge-
wohnheitsrecht – verstärkt im Blickfeld der sowjetischen Völkerrechtslehre*, *GYIL* 30 (1987), 36; Quigley,
Perestroika and International Law, *AJIL* 82 (1988), 788–797; Agora: New Thinking by Soviet Scholars,
AJIL 83 (1989), 494–518 (with contributions by R.A. Mullerson and I.I. Lukashuk); E. McWhinney, *The
“New Thinking” in Soviet International Law: Soviet Doctrines and Practice in the Post-Tunkin Era*, *CYIL*
28 (1990), 309–337; W.E. Butler (ed.), *Perestroika and International Law*, 1990; A. Carty/G. Danilenko (eds),
Perestroika and International Law: Current Anglo-Soviet Approaches to International Law, 1990.

⁴⁵ B.S. Chimni, *International Law and World Order: A Critique of Contemporary Approaches*, 1993; B. Chimni,
International Law and World Order (2017), Ch. 7.

⁴⁶ See, for example, A.A. Ana'im, *Islamic Ambivalence to Political Violence: Islamic Law and International
Terrorism*, *GYIL* 31 (1988), 307; D.A. Westbrook, *Islamic International Law and Public International Law:
Separate Expressions of World Order*, *Virginia JIL* 33 (1993), 819–897; F. Malekian, *The Concept of Islamic
International Criminal Law. A Comparative Study*, 1994.

⁴⁷ H. Bull, *Anarchical Society* (1977), 42.

⁴⁸ W. Jenks, 9 *Malaya Law Review* (1967), 2–3, 5.

positive international law in the absence of a government over and above States. The debate around these theories has been intensive and stimulating for consecutive generations of international lawyers. But these theories have rather limited relevance for the actual practice of States and the problems that have to be solved in daily life.

1.6 The study of international law

The growth of the international legal system over past decades has led to increasing specialisation in both academia and legal professions in practice. As once noted by Oscar Schachter,

It is no longer possible for a “generalist” to cope with the volume and complexity of the various branches of international law. Increasingly, the professional international lawyer, whether practitioner or scholar, is a specialist in a particular branch of the law and each branch develops its own complicated and often arcane doctrine.⁴⁹

This specialisation reflects the fact that international law has “through maturity, acquired complexity”,⁵⁰ but this development also arguably poses problems with regard to the unity of the academic subject.⁵¹

Nevertheless, however many new areas of international law and fora of judicial jurisdiction may exist, their legal basis is the same. Rules in different areas of law are created through the single and same process of lawmaking; tribunals operate in specialised areas of law by using the authority conferred on them through State consent, and they have to address the same issues as to the scope and extent of their powers and jurisdiction, and applicable law.⁵² Issues of conflict and divergence between rules applicable in different areas also arise, and can be resolved only through the general international law tools of interpretation and resolution of normative conflicts.⁵³

Therefore, views as to the unsuitability or impossibility of generalist expertise on international law are highly exaggerated. The growth of international law means not just its quantitative growth but also interdependence between its various branches, all of which are based on one single systemic basis of legitimacy, namely lawmaking by consent. Without the generalist approach, this complexity and interdependence cannot be understood.

1.7 Conclusion

Operating in the world of power politics dominated by States with diverse interests and aspirations, international law has neither the power base nor mechanisms of

⁴⁹ O. Schachter, *International Law in Theory and Practice* (1991), 1.

⁵⁰ T.M. Franck, *Fairness in International Law and Institutions* (1995), 5.

⁵¹ See L.A.N.M. Barnhoorn and K.C. Wellens (eds), *Diversity in Secondary Rules and the Unity of International Law*, 1995.

⁵² Ch. 23.

⁵³ See on these issues Ch. 3 and Ch. 12.

enforcement of national legal systems; nor is it driven by a relatively uniform and homogenous concept of public interest or social opinion in the way that national legal systems are driven. This contrast is inevitable as international law cannot be natural law. The real power of positive international law is that it is a legal system in the absence of the elements of government and centralisation that sustain national legal systems, a system without which States would not be able to cooperate viably and thus achieve their political and economic goals. Breaking the rules of international law may be easier than changing their content, but changing the nature of the system is even more difficult, indeed has so far proved to be impossible without anything short of establishing a world government.